LEGISLATURES INSTITUTIONALIZE CONFLICTS

Legislatures are breeding grounds for conflicts, but institutionalize them so that they do not become violent (Olson 1994, p.7). Lawmakers from different parties and factions have different interests and policies towards national issues, and conflicts are part and parcel of the process in reaching a solution. Legislatures serve as shock absorbers to conflicts so they do not create unrest, instability, or violence. They are rule-based forums to transform differences into solutions accepted by all the stakeholders through accountable and transparent decision-making. Legislators representing various societies through their constituencies can reflect their views on equal footing inside the legislature. Because their performance is usually judged at the next election, they tend to be more responsive to the public than the executive, and are more sensitive to public sentiment, real or perceived. As people's representatives, legislature brings legitimacy (Norton 1990), and so do their conflict resolution efforts. However, the role of the legislature in conflict resolution is often overlooked because the executive and law-enforcement agencies are the ones dealing directly with conflicts. To make matters worse, legislatures in countries undergoing transition are usually developing countries that lack institutional capability to respond to conflict (Yace de Mel 2013, p.22).

There are several ways legislatures can directly or indirectly accommodate domestic political, economic, and social conflicts using legislative tools (Stapenhurst, O'Brien, and Johnston 2008, pp. 5–9). First of all, legislatures provide avenues for dialogue and consultation, which require interaction among legislators and respective stakeholders. Next, through their oversight function, legislatures can make government more accountable, thus reducing conflicts arising from executive incompetence. Legislatures can proactively prevent conflict by promulgating laws. On the other hand, legislatures can also exacerbate or create new conflicts.

Empirical evidence suggests the parliamentary role in conflict is mixed. There are examples of parliaments playing a pivotal role in managing conflicts. During peace talks in Sri Lanka in 1997, the ruling People's Alliance Party reached an agreement with the opposition United National Party to adopt a bipartisan approach and seek consensus to speak with one voice. During tension between Rwanda and Uganda in 2002, both sides were able to ease the tension through bilateral parliamentary visits, which helped to convey that the people of both countries did not want war. In